TICHAWNDA CHAMUKA
AND
HOPE FARM RESIDENTS ASSOCIATION
Versus
MAMINA HOPE RESOURCES (PVT) LTD
AND
MINISTRY OF LANDS,
AGRICULTURE, FISHERIES, WATER,
AND RURAL DEVELOPMENT

HIGH COURT OF ZIMBABWE
V NDLOVU J
HARARE; 8 April 2026 & 9 April202

Urgent Chamber Application

MR A DRACOS for the 1st & 2nd Applicant
MR S. MAJIRIJA for the 1st Respondent
Ms C. MANYEZA for the 2nd Respondent

V. NDLOVU J. This is an urgent chamber application for a provisional interdict. The application is opposed only by the 1st Respondent.

The 1st Respondent took the following preliminary points;
a) Urgency.
b) Dirty hands
c) Incompetent relief sought.

Urgency

The 1st Respondent argued that the application is not urgent because the applicants did not act when the need to act arose. However, the applicants argued that they acted as soon as the 1st Respondent brought machinery to the property on 13 March 2026 and commenced the development. That is when the need to act arose. I find that the Applicants acted when the need to act arose. The preliminary point is dismissed.

Dirty hands

The 1st Respondent's argument on this point touched on the merits of this case. Counsel submitted that the applicants were evicted in 2019 and returned without an order of court. Further, in November 2025, the applicants were issued a notice of eviction. However, the applicants justify their stay on the farm with an offer letter, and this issue turns on the merits of the case. For that reason, the preliminary point is dismissed.

Incompetent relief sought

The 1st Respondent submitted that the provisional order is couched in the same way as the final order. The 1st Applicant's counsel submitted that the provisional order seeks to bar or interdict the 1st Respondent from carrying out any development without an order of the court. The general approach is that the provisional order should be worded differently from the final order sought. It is so for the simple reason that the Applicant must not obtain final relief before the return day, thereby rendering the confirmation proceedings superfluous. The general rule, however, is not cast in stone. There are exceptions to the general rule, depending on the circumstances of the particular case. In this case, the applicants have put the condition precedent to the granting of a final order out of their hands, and that is awkward. They have not applied for a Court Order to authorise the developments on the property in question. However, I do not find that to be fatal in the totality of the circumstances of this dispute, and I accordingly dismiss the preliminary point taken.

MERITS

The 1st Respondent is the registered owner of the farm in question by virtue of the Title Deeds being a ***Deed of Transfer, No. 122/2001***. The title deed is valid and has not been challenged by anyone. In this country, the title deed is the fingerprint or DNA of legal land ownership. The Applicants, for all intents and purposes, base their claims on having been resettled on the land in question through an offer letter dated 30 August 2023.

It is trite that for resettlement purposes in Zimbabwe, the land in question must first be acquired by the Government and the acquisition must be gazetted. A resettlement beneficiary is then offered the acquired land, or a portion thereof, by the responsible minister through an offer letter or a permit. The validity of the permit or offer letter is, of necessity, premised on the fact and validity of the acquisition of the land in question.

In this case, this court has spoken with one voice on four occasions through its judgments tabulated below;

a) In 2004, KARWI J ruled in case number ***HCH347/2004*** *(unreported)* in favour of the 1st Respondent and ordered the ejectment of the defendants from the property together with all persons claiming right of occupation through them. The 1st defendant in that matter was Charles Tigere, who is one of the applicants before the court in the present application.
b) In 2013, MATHONSI J (*as he then was*) ruled in case number ***HCH2071/13*** *(unreported)* that the gazetting of the farm in this matter was a nullity and nullified the same
c) In 2018, HUNGWE J, in case number ***HC950/18,*** declared the second gazetting of Hope Farm (the farm in issue in this present application), a nullity.
d) And finally, on 17 November 2025, CHIRAWU-MUGOMBA J in ***HH850/25*** ruled in favour of the 1st Respondent.

The four High Court judgments declaring the acquisition of the farm in question a nullity are extant, by extension, meaning whatever Offer Letter or Permit one might be in possession of in reference to the farm in question is a nullity.

To cap it all, on 8 August 2018, the government issued the 1st Respondent with a Subdivision Permit to subdivide the land in question. That permit legalises what the 1st Respondent is currently doing or intending to do on the land in question, which is what the Applicants are applying to interdict. Our law is clear: what is legal cannot be interdicted.

DISPOSITION

There must be finality to litigation. The High Court has repeatedly pronounced itself on the dispute, and it does not matter who was or is in litigation against the 1st Respondent on those occasions. This application has no merit

ORDER

The application is hereby dismissed with costs on an attorney-and-client scale.

V. NDLOVU J

Daka Lightfoot & Stone Attorneys, Legal Practitioners for the Applicants.

Mabundu Attorneys Legal Practitioners for the 1st Respondent

Civil Division of the Attorney General's Office, Legal Practitioners for the 2nd Respondent